

(Shanahan) (2008) 168 CA4th 1403, 1434, 86 CR3d 457, 481—terminating sanction appropriate in first instance “in egregious cases of intentional spoliation of evidence”]. 2 Edmon & Karnow [Weil & Brown], Civil Procedure Before Trial (The Rutter Group 2026) §8:2236, p. 28.

There is insufficient evidence to support the conclusion that BESTNEST intentionally destroyed emails or other evidence, nor engaged in repeated earlier violations of discovery rules or court orders.

Finally, this motion was filed more than one month after BESTNEST’s counsel filed a motion to be relieved as counsel. While this discovery motion was set for hearing before that motion to be relieved, the court has some concern that service of the motion papers on BESTNEST’s counsel but not separately also on BESTNEST might result in a lack of due process.

For all of these reasons, this motion is denied, without prejudice to refile and re-serve when the deficiencies noted above have all been satisfactorily addressed.

IN THE MATTER OF J.G. WENTWORTH ORIGINATIONS, LLC
Case No. CU26-03558

Petition for Approval for Transfer of Payment Rights

TENTATIVE RULING

The Payment Transfer Agreement is approved as proposed.

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